

24STCV22315 24STCV22315

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV22315 Hearing Date: August 3, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Alex Martinez

;

Plaintiff,

vs.

Prime Healthcare Centinela

, et al.,

Defendants.

Case No.:

24STCV22315

Hearing Date:

August 3, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Motion

to Substitute Annette Rodridguez as Successor-in-Interest to Decedent Alex Martinez

(2) Motion

to Compel Arbitration

MOVING PARTY: (1) Plaintiff Alex Martinez

(deceased) and proposed successor-in-interest Annette Rodriguez; (2) Defendant York Healthcare & Wellness Centre, LP

RESPONDING PARTY: (1) No opposition; (2) Plaintiff Annette

Rodriguez, successor-in-interest to Alex Martinez

(1) Motion

to Substitute Annette Rodriguez as Successor-in-Interest to Decedent Alex Martinez

The court

considered the moving papers filed in connection with this motion. No opposition was filed.

(2) Motion to Compel Arbitration

The court

considered the moving and reply papers filed in connection with this motion. Annette Rodriguez filed and served a timely opposition to this motion while the motion to substitute was pending. As the court has granted the motion to substitute, the court also exercises its discretion to consider the opposition to the motion to compel arbitration.

DISCUSSION

Motion to Substitute Annette Rodriguez as
Successor-in-Interest

Annette

Rodriguez moves the court for an order substituting her as successor-in-interest to plaintiff Alex Martinez.

The

court finds that the proposed successor-in-interest has submitted an affidavit which satisfies the statutory requirements. (Rodriguez Decl. ¶¶ 2-6, Ex. 1; Code Civ. Proc., § 377.32.) Therefore, the court grants the motion to substitute Annette Rodriguez as successor in interest to the deceased plaintiff Alex Martinez. (Code Civ. Proc., § 377.31.)

Motion to Compel Arbitration

Defendant

York Healthcare & Wellness Centre, LP ("Defendant") moves the court for an order compelling binding arbitration of this dispute.

1. Applicability of Federal
Arbitration Act

"The party

asserting the FAA applies to an agreement has 'the burden to demonstrate FAA coverage by declarations and other evidence'" (Evenskaas v. California Transit, Inc. (2022) 81 Cal.App.5th 285, 292 [internal citation omitted].)

"[W]hen an agreement provides that its 'enforcement' shall be governed by the FAA, the FAA governs a party's motion to compel arbitration[.]" (Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346.)

The court finds

that Defendant has met its burden to show that the Federal Arbitration Act (9 U.S.C. § 1 et seq.) (the "FAA") governs this motion because the arbitration agreement that is the subject of this motion states that it "shall be construed and enforced in accordance with and governed by the Federal Arbitration Act and the procedures set forth in the Federal Arbitration Act shall govern any petition to compel arbitration." (Guzman Decl. Ex. A, § 1.8.)

2. Existence of Agreement to Arbitrate

“ “The party

seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement's enforcement.” ” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.)

To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.”

(Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. A movant can bear this initial burden ‘by

attaching a copy of the arbitration agreement purportedly bearing the opposing party's

signature.” (Ibid. [internal citations omitted].) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute”

as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence.

(Ibid.; Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-166.)

First, the court

finds that Defendants have met their burden to provide a copy of an alleged agreement to arbitrate this controversy.

Defendants have

submitted a copy of a signed “Arbitration Agreement” which states that Alex Martinez (“Decedent”) and Defendant agree to arbitrate any dispute as to medical malpractice, or any claims, disputes, controversies, or demands relating to or arising out of the provision of services or healthcare or any failure to provide services or healthcare by Defendant. (Guzman Decl. Ex. A, §§ 1.1, 1.2.) The Arbitration Agreement also states that Decedent and Defendant agree to arbitrate any disputes relating to the admission agreement, the Arbitration Agreement, or the validity, interpretation, construction, performance, and enforcement thereof. (Guzman Decl. Ex. A, § 1.2.) The

Arbitration Agreement bears a handwritten signature dated December 14, 2022.
(Guzman Decl. Ex. A, p. 5.)

Second, the Court

finds that plaintiff Annette Rodriguez ("Plaintiff"), as successor-in-interest to the Decedent, has not met her burden to demonstrate a factual dispute as to the existence of the Arbitration Agreement.

Plaintiff

contends that the Decedent did not have the capacity to enter into an arbitration agreement at the time because he suffered from a variety of physiological and psychological ailments which cast doubt on his capacity to understand the consequences of the agreement. Although Plaintiff presents medical records concerning the Decedent at the time, Plaintiff does not present competent evidence that establishes the Decedent did not have capacity to contract at the time he signed the Arbitration Agreement. (Peck Decl. Ex. B [Decedent's medical records].) A declaration by Plaintiff's counsel is not competent evidence of the Decedent's capacity to contract because that is a matter which requires specialized medical knowledge. Plaintiff's counsel has not demonstrated that knowledge.
(Peck Decl. ¶¶ 1-6.)

The court further

finds that Defendant has shown that the Arbitration Agreement encompasses Plaintiff's claims because it requires arbitration of any claim arising from the provision of services or care to the Decedent or any failure to do so.
(Guzman Decl. Ex. A, § 1.2.) The court also notes that the Arbitration Agreement delegates to the Arbitrator "the exclusive authority to resolve any Dispute relating to the interpretation, applicability, enforceability, or formation of this Agreement." (Guzman Decl. Ex. A, § 1.6.) This is, on its face, a delegation clause regarding the arbitrability of claims. (Rodriguez v. American Technologies, Inc. (2006) 135 Cal.App.4th 1110, 1123.)

For the reasons

stated above, the court finds that Defendant has established that Decedent entered into a binding agreement to arbitrate his claims against Defendant. The court therefore grants the motion to compel arbitration.

ORDER

The court GRANTS

Annette Rodriguez's motion to substitute successor-in-interest.

The court orders

that Annette Rodriguez be substituted as plaintiff and successor-in-interest to the deceased plaintiff Alex Martinez.

The court GRANTS

defendant York Healthcare & Wellness Centre, LP's motion to compel arbitration.

The court orders

(1) plaintiff Annette Rodriguez and defendant York Healthcare & Wellness Centre, LP to submit the claims alleged in the Complaint against defendant York Healthcare & Wellness Centre, LP to arbitration and (2) this entire action is stayed pending completion of the arbitration between plaintiff Annette Rodriguez and defendant York Healthcare & Wellness Centre, LP.

The court sets (1)

an Order to Show Cause Re: Completion of Arbitration (between plaintiff Annette Rodriguez and defendant York Healthcare & Wellness Centre, LP), and (2) a Case Management Conference for hearing on Monday, April 5, 2027, at 8:30 A.M. in Department 513.

The court orders defendant

York Healthcare & Wellness Centre, LP to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 3, 2026

Robert B. Broadbelt III

Judge of the Superior Court